ANESU KAPANGA
and
TAKESURE KAPANGA
and
TICHAONA KAPANGA
versus
MASTER OF THE HIGH COURT (N.O)
and
EMILIA TAPIWA KAPANGA
(Cited in her capacity as the Executrix Dative in the Estate of the late Letty Kapanga DR 1431/20)

HIGH COURT OF ZIMBABWE
MAXWELL J
HARARE 8 September 2025 & 12 February 2026

Opposed Matter - Condonation

R Kapanga, for the Applicant
T Chikura, for the 2nd Respondent
No Appearance for the 1st Respondent

MAXWELL J:

The applicant approached the court seeking condonation for the late filing of the application for review and for an extension of time to file it. In the founding affidavit applicant states that he was served with a summons for eviction by the 2nd respondent under case number HC3516/22, following property distribution by the 1st respondent in the estate of late Letty Kapanga, registered under DR 1431/20 in favour of the 2nd respondent. In April 2022, the appellant noted an appeal. He was represented by Manyangadze Law Practice. The legal practitioner who was assisting him left the law firm in October 2022. The applicant averred that the record of proceedings was only submitted in April 2023, seven months after the legal practitioner had left the firm and a year after the notice of appeal was filed and served at the Master's office. The applicant further explained that, with the introduction of the Integrated Electronic Case Management System (IECMS), the case was mistakenly linked to a legal practitioner whom they had never engaged.

The firm denied knowledge of the matter when the Registrar requested the filing of heads of argument. The law firm did not renounce agency when requested to do so, which led the applicants to believe they were being represented. The applicant pointed out that the matter was dismissed due to the late filing of heads of argument.

On 10 May 2024, the applicants filed a court application for reinstatement of the appeal under case number HCHF 916/24. The respondents filed a court application for condonation of late filing a notice of opposition, which was granted. The applicants filed an answering affidavit, but the registrar dismissed the matter. The applicant alleges that, after filing the above court application, they realised that major issues had not been addressed, hence the filing of the present application for failure to file a review within eight weeks after the Master of High Court's decision. He stated that, in this application, he is seeking condonation of the late filing of a review on the basis that the 1st respondent did not invite the 1st to 3rd respondents to the edict meeting.

The applicant argued that the delay was not inordinate and was caused by unforeseen circumstances. He further contended that his right to be heard was denied, as he and the other applicants were beneficiaries by virtue of being children of the late Simon Kapanga, himself a beneficiary of the Estate of Late Letty Kapanga. He submitted that the Master of the High Court grossly misdirected himself by accepting the will of Ndereya Kapanga in support of Letty Kapanga's will.

The applicant explained that non-compliance with the rules resulted from several factors: the departure of his legal practitioners from the firm, the mismanagement of the case under IECMS, delays in the availability of the court record and the filing of an appeal and application for condonation of late filing of heads of argument instead of a review. He submitted that he has high prospects of success in the main matter, noting that he was never advised of the edict meetings held at the Master's office. He further alleged that the 2nd respondent had misrepresented to the Master regarding the measurements of the deceased estate's land, thereby affecting their rights.

The legal practitioner who assisted him in noting the appeal filed a supporting affidavit, confirming that the 2nd respondent had issued a summons for eviction against the applicants after the 1st respondent approved the distribution account. He stated that he filed an appearance to defend the matter, but left Manyangadze Law Practice in October 2022, before receiving correspondence from the Registrar regarding payment for the record of proceedings. He explained that he had not utilised IECMS, as the courts were still operating

with hard copies, and that the address of service remained Manyangadze Law Practice. He averred that he was not linked to the case after leaving the firm and did not receive any communication requiring his attention. He only became aware of the dismissal of the matter in 2024, at which point he advised the applicants of the outcome and the procedures they should follow. He submitted that the delay was not willful and that the applicants should not be punished.

The 2nd and 3rd applicants also filed supporting affidavits, reiterating the same information provided by the 1st applicant.

In opposition, the 2nd respondent argued that the applicants' legal practitioner had practiced under Manyangadze Law Practice and had never renounced agency upon leaving the firm. He maintained that the Registrar correctly linked Manyangadze Law Practice as the applicants' legal representative. He further contended that the application for reinstatement was dismissed by the court, not the Registrar. The 2nd respondent argued that the applicants were notified of the edict meeting and chose not to attend, noting that advertisements had been placed in newspapers to inform the public about the estate's finalisation. He submitted that the applicants had ample time to assert their rights at the Master's office.

The 2nd respondent maintained that the delay was unreasonable, as the applicants admitted becoming aware of the estate's finalisation in March 2022, yet only filed the present application on 26 June 2025. He denied misrepresenting the Master and argued that the applicants' explanation for the delay was not reasonable. He further contended that the applicants had no prospects of success in the main matter.

The respondent pointed out that the boundary issue was never before the Master and accused the applicants of filing numerous applications to frustrate execution of the distribution account, thereby causing him unnecessary expenses. He argued that the applicants were not suitable candidates for condonation. He also noted that Mr. Marava's supporting affidavit did not explain the delay in filing the review application, and that the affidavits of the 2nd and 3rd applicants likewise failed to provide a justifiable explanation.

In reply, the applicants insisted that the legal practitioner handling their case was not properly linked, and that the law firm acknowledged one Denford, who was unknown to them. They maintained that the linked practitioner had never communicated with them or filed the required documents. They further submitted that they were unaware of court procedures and had not seen the newspaper advertisements, as they reside in rural areas where newspapers are not purchased daily.

ANALYSIS

The applicable legal principles in applications of this nature are well established in our jurisprudence. The court has discretion, which must be exercised carefully after considering all relevant factors. The applicant has the burden to prove that there is enough cause to grant the indulgence. In the case of *Tel-one Pvt (Ltd)* v *Communication and Allied Services Workers Union of Zimbabwe* S-01-06 GWAUNZA JA (as she then was) said the following :

> "Essentially, in an application of this nature, the applicant must satisfy the court firstly, that he has a reasonable explanation for the delay in question and secondly that his prospects of success on appeal are good."

The main factors are explained in the case of In *Read* v *Gardener and Ano*r S-70-19, where the court held that:

> "The factors to be considered in an application for the condonation of any failure to comply with the rules of court are well established. They are simply expounded in several decisions of the court in which the salient criteria are identified. They include the following:
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> i. The extent of the delay involved or non -compliance in question
> ii. The reasonableness of the explanation for the delay or non-compliance
> iii. Prospects of success should the application be granted
> iv. The possible prejudice to the other party
> v. The need for finality to litigation
> vi. The importance of the case
> vii. The convenience of the court
> viii. The avoidance of delays in the administration of justice"

See also the case of *Florence Chimunda v Arnold Zimuto* S-76-14

In the case of *Ganda* v *First Mutual Life Assurance Society* S-01-05, it was stated that:

> "In addition, it is pertinent to note that it has been stated in a number of cases that a person seeking condonation of the late noting of an appeal should give a reasonable explanation, not only for the delay in noting the appeal, but also for the delay in seeking condonation…"

The estate of the late Letty Kapanga was registered in 2020 and finalized in 2022. A notice of eviction was issued in April 2022. The respondent subsequently appealed against the decision of the Master in April 2023. In parallel, the 2nd respondent issued summons under case number 3516/22, to which the applicants entered an appearance to defend. The record of proceedings was availed in April 2023. The applicants had engaged the legal practitioner from Manyangadze Law Practice to handle both matters. However, he left the firm in October 2022, prior to the delivery of the record of proceedings. The applicants

contend that all papers were being received at Manyangadze Law Practice, yet no communication was made with them or their engaged legal practitioner.

In February 2024, the 2nd respondent obtained a default judgment, which was served on the applicants. They then discovered that the appeal had been dismissed and judgment entered in favour of the respondents. The applicants filed an application for rescission of judgment and an application for reinstatement of the appeal, both of which were opposed. They further filed an application for condonation to file a notice of opposition in the rescission matter. The application for reinstatement was dismissed in March 2025, followed by the dismissal of the rescission application. Thereafter, the present application was filed on 26 June 2025.

It is common cause that, at the time of filing, the applicants were out of time by a period of three years in seeking review. Rule 62(4) of the High Court Rules, 2021 requires that an application for review be filed within eight weeks of the termination of the proceedings in which the alleged irregularity occurred. The present application, filed three years after the close of proceedings, demonstrates an inordinate delay. The explanation advanced for the delay is unreasonable. Applicants choose their legal practitioners and are bound by the consequences of their recklessness or negligence.

In the case of *Zimslate Quartzite (Pvt) Ltd & Ors* v *Central African Building Society* SC 34/17, the court held that;

> "An applicant, who has infringed the rules of the court before which he appears, must apply for condonation and in that application, explain the reasons for the infraction. He must take the court into his confidence and give an honest account of his default in order to enable the court to arrive at a decision as to whether to grant the indulgence sought. An applicant who takes the attitude that indulgences, including that of condonation, are there for the asking does himself a disservice as he takes the risk of having his application dismissed."

Further, in the case of *Kodzwa* v *Secretary for Health & Anor* 1999 (1) ZLR 313 (S), the court reiterated that;

> "Condonation of non-observance of the rules is by no means a mere formality. It is for the applicant to satisfy the court that there was sufficient cause to excuse him from non-compliance…the court's power to grant relief should not be exercised arbitrarily and upon the mere asking, but with proper judicial discretion and upon sufficient and satisfactory grounds shown by the applicant."

The 2nd respondent argued that the applicants had been sitting on their laurels and did nothing to bring the application for review. It would not be a miscarriage of justice if this

current application fails. The 2nd respondent cited the case of *Unki Mines (Pvt) Ltd* v *Dohne Construction (Pvt) Ltd* ZWSC 41/2023 wherein the court held that;

> "What the test for reasonable prospects of success postulates is a dispassionate decision, based on the facts and the law that a court of appeal could reasonably arrive at a conclusion different to that of a trial court. In order to succeed, therefore, the applicant must convince this court on proper grounds that he has prospects of success on appeal and that those prospects are not remote but have a realistic chance of succeeding. More is required to be established than that there is a mere possibility of success, that the case is arguable on appeal or that the case cannot be categorised as hopeless. There must, in other words, be a sound, rational basis for the conclusion that there are prospects of success on appeal."

In this case, the applicants have not demonstrated that they have prospects of success on review. In order for an application for condonation to succeed, the applicant must show that he or she has prospects of success on review. The requirement of prospects of success serves a vital screening function. It would be an exercise in futility, and contrary to the interests of justice, to grant condonation for a demonstrably untenable claim.

The applicants' position is that the Master was grossly misdirected when he failed to notify them of the edict meetings, and in awarding the 2nd respondent and her sisters the garden and fields despite these not having been bequeathed to them in the will. On the other hand, the 2nd respondent submitted that the applicants have no prospects of success on review, since they were duly notified of the edict meeting as shown by the minutes, and they chose not to attend. Further advertisements were placed in newspapers advising the general public.

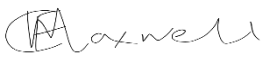
The 2nd respondent further argued that the Master did not distribute ownership of the property but rather distributed rights in the property. The applicants have not materially challenged the procedural aspects of the proceedings. I am satisfied that the applicants have failed to discharge the onus of showing any reasonable prospects of success. Having applied the established principles and the relevant jurisprudence of this court, I find that the applicants have failed to discharge the burden required for the granting of condonation.

The explanation for the delay of three years is inadequate and unreasonable. It further consists of an unsubstantiated claim of negligence by their legal practitioners. To grant condonation in these circumstances would be to undermine the rules of the court and the principle of finality in litigation.

Accordingly, the following order is made

1. The application for condonation of late filing of an application for review be and is hereby dismissed.

2. There shall be no order as to costs.



Mangwana & Partners, applicants' Legal Practitioners
Chiminya & Associates, 2nd respondents Legal Practitioners